

Intermodal Motor Carriers Conference, et al.

v.

Ocean Carrier Equipment Management Association, Inc., et al.

FMC Docket No. 20-14

Joint Stipulations of Fact

Public Version - confidential materials excluded.

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO.
011982, HAPAG-LLOYD AG, HMM CO.
LTD., MAERSK A/S, MSC MEDITERRANEAN
SHIPPING COMPANY S.A., OCEAN NETWORK
EXPRESS PTE. LTD., WAN HAI LINES LTD., YANG
MING MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

STIPULATIONS PURSUANT TO 46 C.F.R. § 502.207

The parties in the above-captioned matter hereby stipulate to the following facts involved
in the proceeding pursuant to 46 C.F.R. § 502.207.

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I. PARTIES AND RELEVANT NON-PARTIES

A. IMCC

1. Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) is a conference of the American Trucking Associations, Inc. (“ATA”), a District of Columbia Corporation. Its business address is 950 North Glebe Road, Suite 210, Arlington, VA 22203.

2. The IMCC’s membership includes ATA member companies engaged in the intermodal transportation of property, including the interchange of chassis with respect to receipt and return of the Respondent ocean carriers’ containers as well as other ocean carriers not named as respondents in this proceeding.

B. OCEMA and CCM

3. Respondent Ocean Carrier Equipment Management Association Inc. (“OCEMA”) is a District of Columbia non-profit corporation created and established pursuant to FMC Agreement No. 011284, effective July 6, 1990, originally entitled the “Equipment Interchange Discussion Agreement.”

4. In May 1999, the Equipment Interchange Discussion Agreement was amended. Article 5.8 of FMC Agreement No. 011284-33 states “Subject to any restrictions in the Shipping Act of 1984, as amended, the parties [ocean carriers] may also discuss, negotiate, and agree upon joint contracts, joint purchase and joint lease of inland transport services, inland depot services, pools, equipment, terminals, and other facilities.”

5. Effective April 18, 2000, the Equipment Interchange Discussion Agreement was renamed the “Ocean Carrier Equipment Management Association.” FMC Agreement No. 011284-035 (“the OCEMA Agreement”).

6. In 2005, the OCEMA Agreement was amended to include establishing and overseeing the operation of the chassis pools managed by Consolidated Chassis Management, LLC (“CCM”).

7. Effective October 5, 2005, FMC Agreement No. 011284-58 permitted OCEMA discussions and agreements in Article 5.8 to include the establishment of chassis pools, as well as their use. FMC Agreement No. 011284-58 also added new Article 5.13 that provided, among other things, “The parties may also form, own, and operate corporations, limited liabilities companies, holding companies, and other entities, formed either for profit or not for profit, to establish, own, and/or operate equipment pools or pool-owning companies.”

8. The current version of the OCEMA Agreement is No. 011284-083, effective September 9, 2020.

9. OCEMA’s business address is 1200 19th Street, N.W., 3rd Floor, Washington, D.C. 20036.

10. OCEMA’s website as of January 24, 2022, provides in part that:

OCEMA is an association of major U.S. and foreign flag international ocean common carriers. OCEMA provides a forum for its members to discuss, evaluate and reach agreement with respect to matters pertaining to the interchange, transportation, use and operation of carrier equipment in the U.S. Included in its scope are equipment-related operational, safety, and regulatory activities such as participation in industry forums, educational sessions, regulatory proceedings and legislative matters.

OCEMA members operate worldwide and serve all major U.S. ports and inland locations, moving cargoes primarily in containers. As a regular part of intermodal transportation services provided to U.S. manufacturers, importers, retailers and others, OCEMA members interchange cargo to be carried to and from U.S. inland locations via motor carriers and railroads. An essential element of these inland operations involves the movement of containers on intermodal chassis and rail cars.

...

OCEMA members control 80% of the total market share as reported by Alphaliner's top 50 U.S. Global Container Fleet operators.

OCEMA, <http://www.ocema.org/about.html>.

11. OCEMA's Senior Steering Committee has been comprised of representatives of OCEMA members.

12. OCEMA business and operating decisions are made by OCEMA's Executive Committee, comprised of representatives of OCEMA members.

13. OCEMA's Executive Director and Secretary perform various functions, including preparing meeting minutes for meetings of the OCEMA Agreement's Senior Steering Committee and the OCEMA Agreement's Executive Committee. Pursuant to FMC requirements, the OCEMA Agreement files copies of minutes of its Senior Steering Committee and Executive Committee with the FMC's Bureau of Trade Analysis. The following meeting minutes for meetings of the OCEMA Agreement's Senior Steering Committee and the OCEMA Agreement's Executive Committee contain fair and reasonable summaries of the proceedings of those committee meetings, as memorialized therein: (a) Minutes of the OCEMA Senior Steering Committee Meeting, February 25, 2010 (OCE0000380), (b) Minutes of the OCEMA Executive Committee, June 14, 2018 (OCE0000557), (c) Minutes of the OCEMA Executive Committee, October 11, 2018 (OCE0000563), (d) Minutes of the OCEMA Executive Committee, May 15, 2018 (OCE0000565), (e) Minutes of the OCEMA Senior Steering Committee, April 5, 2018 (OCE0001104), (f) Minutes of the OCEMA Senior Steering Committee, May 9, 2019 (OCE0001110), (g) Minutes of the OCEMA Senior Steering Committee, October 8, 2018 (OCE0001308), (h) Minutes of the OCEMA Senior Steering Committee, November 1, 2018 (OCE0001311), (i) Minutes of the OCEMA Senior Steering Committee, November 19, 2018 (OCE0001314), (j) Minutes of the OCEMA Senior Steering Committee, August 21, 2018,

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(OCE0001519), (w) Minutes of the OCEMA Senior Steering and Executive Committees,
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2016 (OCE0001788), (ee) Minutes Of A Meeting Of The Executive Committee Of Ocean
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(OCE0001815), (gg) Minutes of the OCEMA Executive Committee, October 26, 2017

(OCE0005024), (hh) Minutes of the OCEMA Senior Steering Committee, October 30, 2019

(OCE0007425), (ii) Minutes of the OCEMA Executive Committee, October 30, 2019

(OCE0007480), (jj) Minutes of the OCEMA Senior Steering Committee, October 23, 2014

(OCE0008806), (kk) Minutes of E-Mail Voting OCEMA Senior Steering Committee Meeting, November 14, 2014 (OCE0008811), (ll) Minutes of the OCEMA Senior Steering Committee Meeting, November 6, 2013 (OCE0008812), (mm) Minutes of the OCEMA Senior Steering Committee, February 18, 2015 (OCE0008824), (nn) Minutes of the OCEMA Senior Steering Committee, February 28, 2012 (OCE0008827), (oo) Minutes of a Meeting of the Senior Steering Committee of Ocean Carrier Equipment Management Association, Inc., September 3, 2014

(OCE0008858), (pp) Minutes of the OCEMA Senior Steering Committee, October 6, 2016

(OCE0010048), (qq) Minutes of the OCEMA Senior Steering Committee, March 26, 2020

(ONE0010186), (rr) Minutes of the OCEMA Senior Steering and Executive Committees, October 28, 2020 (OCE0010475), (ss) Minutes of the OCEMA Executive Committee, September 30, 2015 (OCE0010622), (tt) Minutes of the OCEMA Senior Steering Committee, January 6, 2015 (OCE0010700), (uu) Minutes of the OCEMA Senior Steering Committee, August 9, 2011

(OCE0015279), (vv) Minutes of the OCEMA Senior Steering Committee, October 26, 2017

(OCE0016890), (ww) Minutes of the OCEMA Senior Steering Committee, April 30, 2015

(OCE0017303), (xx) Minutes of a Joint Meeting of the Executive Committee of Ocean Carrier Equipment Management Association, Inc., July 14, 2014 (OCE0017465), (yy) Minutes of the OCEMA Senior Steering Committee, December 5, 2012 (OCE0020205), (zz) Minutes of the OCEMA Senior Steering Committee, October 22, 2015 (OCE0031812), and (aaa) Minutes of the OCEMA Senior Steering Committee, February 15, 2018 (YML0000956).

14. Respondent CCM, its affiliates, and its affiliated pools are created pursuant to, and have operated pursuant to, the Consolidated Chassis Management Pool Agreement (“CCMP Agreement”), FMC Agreement No. 011962, the current version of which is FMC Agreement No. 011962-018, effective January 30, 2021.

15. CCM is a Delaware limited liability company. CCM’s principal place of business is located at 500 International Drive, Suite 130, Budd Lake, NJ 07828.

16. Parties to the CCMP Agreement include OCEMA and its members, as well as CCM and its affiliates.

17. In 2006, OCEMA members and others filed the CCMP Agreement, FMC Agreement No. 011962, effective June 30, 2006 (“June 2006 CCMP Agreement”), with the Federal Maritime Commission, to carry out the provisions of the revised OCEMA Agreement.

18. FMC Agreement No. 011962-007, effective December 29, 2011 (“December 2011 CCMP Agreement”), reorganized CCM by adding a holding company, CCM Holdings, LLC, and a Pool subsidiary, CCM Pools, LLC. December 2011 CCMP Agreement at 3.

19. CCM Holdings, LLC was renamed to the current Consolidated Chassis Enterprises LLC (“CCE”) as reflected in FMC Agreement No. 011962-010, effective January 29, 2014.

20. The current version of the CCMP Agreement is No. 011962-018, effective January 30, 2021.

21. Meeting minutes generally have been prepared for all meetings of CCE and CCM’s Board of Managers (generally meeting jointly), by its Secretary. Pursuant to FMC requirements, these minutes are filed with the FMC’s Bureau of Trade Analysis. The following meeting minutes for meetings of CCE and CCM’s Board of Managers contain fair and

reasonable summaries of the proceedings of those meetings, as memorialized therein: (a) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, March 19, 2015 (CCM0021748), (b) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, the Board of Managers of Consolidated Chassis Management LLC, and the Board of Managers of CCM Pools LLC, February 19, 2020 (CCM0044057), (c) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC and the Board of Managers of Consolidated Chassis Management LLC, October 29, 2019 (CCM0044221), (d) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC and the Board of Managers of Consolidated Chassis Management LLC, April 26, 2018 (CCM0045023), (e) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC and the Board of Managers of Consolidated Chassis Management LLC, January 29, 2019 (OCE0018354), (f) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC and the Board of Managers of Consolidated Chassis Management LLC, July 24, 2018 (OCE0018461), (g) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, January 23, 2018 (OCE0018466), (h) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC and the Board of Managers of Consolidated Chassis Management LLC, October 23, 2018 (OCE0018626), (i) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, April 11, 2017 (OCE0019302), (j) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, January 12, 2017 (OCE0019360), (k) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, September 23, 2016 (OCE0019364), (l) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, July 13, 2017 (OCE0019548), (m) Minutes

of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, October 10, 2017 (OCE0019712), (n) Minutes of a Board Meeting Consolidated Chassis Enterprises LLC, March 27, 2013 (OCE0020870), (o) Minutes of a Board Meeting Consolidated Chassis Enterprises LLC, February 25, 2013 (OCE0020873), (p) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, February 22, 2013 (OCE0020886), (q) Minutes of a Joint Meeting of the Boards of Managers Consolidated Chassis Enterprises LLC, CCM Pools LLC, and Consolidated Chassis Management LLC, January 28, 2013 (OCE0020948), (r) Minutes of a Joint Meeting of the Board of Managers of CCM Pools LLC, October 22, 2019 (OCE0031081), (s) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, May 18, 2016 (OCE0031722), (t) Minutes of a Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, February 3, 2016 (OCE0031725), and (u) Minutes of a Joint Meeting of the Board of Managers of Consolidated Chassis Enterprises LLC, the Board of Managers of Consolidated Chassis Management LLC, and the Board of Managers of CCM Pools LLC, May 18, 2020 (ONE0010149).

C. CMA

22. Respondent CMA CGM S.A. (“CMA”), conducting business in the United States through CMA CGM (America) LLC, is a French global ocean carrier company founded in 1978 and located at 4, Quai D’Arenc, P.O. Box 2409, 13215 Marseilles Cedex 02, France. CMA CGM (America) LLC’s U.S. office is located at 5701 Lake Wright Drive, Norfolk, VA 23502.

23. CMA, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation to over 420 ports in 150 countries.

24. In the United States, CMA has served multiple ports and/or intermodal terminals including New York, Baltimore, Charleston, Savannah, Jacksonville, New Orleans, Houston, Memphis, Chicago, Los Angeles, and Oakland.

25. CMA is an ocean common carrier regulated by the Federal Maritime Commission.

26. CMA and/or its affiliate(s) or predecessor(s) have been members of the OCEMA Agreement since 2001.

27. CMA and/or its affiliate(s) or predecessor(s) has been a member of the CCMP Agreement since 2006.

28. CMA has engaged and continues to engage in international maritime commerce of the United States.

29. CMA publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

30. CMA's tariffs contain port-to-port rates, under which CMA's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by CMA.

31. CMA's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, CMA is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, CMA's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by CMA.

32. CMA's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, CMA is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by CMA.

33. CMA has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates.

34. CMA's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by CMA.

35. CMA also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable CMA tariffs.

36. One type of provision in a service contract involving merchant haulage makes CMA responsible for payment of charges for chassis use. CMA classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

D. COSCO

37. Respondent COSCO SHIPPING Lines Co. Ltd. ("COSCO"), conducting business in the United States through COSCO Shipping (North America) Inc., is a Chinese global ocean carrier company founded in 1964 and located at No. 378 Dong Da Ming Road, Shanghai, 200080, People's Republic of China. COSCO's U.S. office is located at 100 Lighting Way, Secaucus, NJ 07094.

38. COSCO is a subsidiary of COSCO Shipping Corporation Limited, a company established after the 2016 merger of COSCO and China Shipping.

39. In or around 2018, COSCO's parent company, COSCO Shipping Holdings, acquired over 50 percent of the ownership of Oriental Overseas Container Lines, Ltd. ("OOCL") or its parent company.

40. COSCO, by itself and through its common carrier subsidiaries and affiliated companies, has offered container transportation in 356 ports in 105 countries.

41. In the United States, COSCO has served multiple ports and/or intermodal terminals including New York, Norfolk, Savannah, Charleston, Miami, Chicago, Memphis, Los Angeles, and Long Beach.

42. COSCO is an ocean common carrier regulated by the Federal Maritime Commission.

43. COSCO and/or its affiliate(s) or predecessor(s) have been members of the OCEMA Agreement since 2001.

44. COSCO and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

45. COSCO has engaged and continues to engage in international maritime commerce of the United States.

46. COSCO publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

47. COSCO's tariffs contain port-to-port rates, under which COSCO's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by COSCO.

48. COSCO's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, COSCO is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, COSCO's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by COSCO.

49. COSCO's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, COSCO is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by COSCO.

50. COSCO has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates.

51. COSCO's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by COSCO.

52. COSCO also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable COSCO tariffs.

53. One type of provision in a service contract involving merchant haulage makes COSCO responsible for payment of charges for chassis use. COSCO classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

E. Evergreen

54. Respondent Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”) is a joint service agreement between Evergreen Marine Corp. (Taiwan) Ltd., Italia Marittima S.P.A., Evergreen Marine (Singapore) Pte Ltd, Evergreen Marine (UK) Ltd., and Evergreen Marine (Hong Kong) Ltd., FMC Agreement No. 011982 and located at No. 163, Sec. 1, Hsin-Nan Road, Luchu Hsian, Taoyuan Hsien, 338, Taiwan.

55. Evergreen has conducted business in the United States through Evergreen Shipping Agency (America) Corporation, located at One Evertrust Plaza, Jersey City, NJ 07302.

56. Evergreen, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation at 240 ports globally in 80 countries.

57. In the United States, Evergreen has served multiple ports and/or intermodal terminals including New York, Norfolk, Savannah, Charleston, Memphis, Tacoma, Oakland, and Los Angeles.

58. Evergreen is an ocean common carrier regulated by the Federal Maritime Commission.

59. Evergreen and/or its affiliate(s) or predecessor(s) have been members of the OCEMA Agreement since 2000.

60. Evergreen and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

61. Evergreen has engaged and continues to engage in international maritime commerce of the United States.

62. Evergreen publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

63. Evergreen's tariffs contain port to port rates, under which Evergreen's customers, such as BCOs or NVOCCs, are responsible for arranging for and obtaining rail and/or motor carrier transportation between the port and customer's location. With respect to motor carrier transportation, this customer responsibility includes obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by Evergreen. In regard to such MH moves, chassis are provided by Evergreen to its customers for use by the customers' designated motor carriers. Pursuant to its tariff rules governing such MH moves, Evergreen assesses a Chassis Usage Charge (CUC) on its customers for the day of delivery of the container to the motor carrier plus 4 business days unless the customer uses its own chassis. The motor carrier is not charged by Evergreen for the time period covered by the CUC, i.e., "free time" to the motor carrier. If the chassis is not returned to the original point of delivery during the free time period, Evergreen assesses a daily per diem charge on the motor carrier until the chassis is returned, currently \$20.00 per day, pursuant to the UIIA Agreement signed by the motor carrier, the Evergreen UIIA Addendum signed by the motor carrier, and Evergreen Tariff Rule 021-005. Each chassis provided by Evergreen is leased by Evergreen from an equipment provider, which charges Evergreen a daily usage rate from the day of delivery to the day of return. If the customer so chooses, it can use its own chassis or one owned or leased by its designated motor carrier.

64. Evergreen's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. intermodal terminal, Evergreen is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, Evergreen's customer is responsible for arranging for and obtaining rail and/or motor carrier transportation between the intermodal terminal and the final destination. This

responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by Evergreen. In regard to such MH moves, chassis are provided by Evergreen to its customers for use by the customers' designated motor carriers. Pursuant to its tariff rules governing such MH moves, Evergreen charges its customers a Chassis Usage Charge (CUC) for the day of delivery of the container to the motor carrier plus 4 business days unless the customer uses its own chassis. The motor carrier is not charged by Evergreen for the time period covered by the CUC, i.e., "free time" to the motor carrier. If the chassis is not returned to the original point of delivery during the free time period, Evergreen assesses a daily per diem charge on the motor carrier until the chassis is returned, currently \$20.00 per day, pursuant to the UIIA Agreement signed by the motor carrier, the Evergreen UIIA Addendum signed by the motor carrier, and Evergreen Tariff Rule 021-005. Each chassis provided by Evergreen is leased by Evergreen from an equipment provider which charges Evergreen a daily usage rate from the day of delivery to the day of return. If the customer so chooses, it can use its own chassis or one owned or leased by its designated motor carrier.

65. Evergreen's tariffs also contain rates to/from specific customer locations which rates are referred to as store-door rates. Under a store-door rate Evergreen is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location including payment to a chassis provider for the chassis used in such move. Such container movements are classified as carrier haulage (CH) moves by Evergreen. Pursuant to its tariff rules governing such store-door moves, Evergreen charges its customers a Chassis Usage Charge (CUC) for the day of delivery of the container to the motor carrier plus 4 business days unless the motor carrier used by Carrier provides its own chassis for the Carrier haulage and assesses its own Chassis Usage Charge against the cargo

interest. The motor carrier is not charged by Evergreen for the time period covered by the CUC, i.e., “free time” to the motor carrier. If the chassis is not returned to the original point of delivery during the free time period, Evergreen assesses a daily per diem charge on the motor carrier until the chassis is returned, currently \$20.00 per day, pursuant to the UIIA Agreement signed by the motor carrier, the Evergreen UIIA Addendum signed by the motor carrier, and Evergreen Tariff Rule 021-005.

66. Evergreen has customers who obtain ocean transportation of containers in accordance with the port-to-port, inland intermodal, and store-door provisions in its tariffs.

67. The ocean transportation, inland intermodal transportation, and store-door provisions in Evergreens tariffs are subject to the Rules set forth in the applicable tariffs and the separate rules tariffs issued by Evergreen except as may be otherwise amended in individual customer service contracts. One such tariff rule is Rule 021-C04 – Chassis Usage Charge-Port of Discharge set forth in Evergreen Tariff 601 - GENERAL RULES TARIFF FOR ALL TRADES.

68. Evergreen also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Evergreen tariffs. For example, a service contract may modify the number of days covered by the CUC and/or the number of days of free time allocated for the return of chassis and/or the applicable per diem to be charged if the chassis is not returned within the applicable free time.

F. Hapag-Lloyd

69. Respondent Hapag-Lloyd AG (“Hapag-Lloyd”), conducting business in the United States through Hapag-Lloyd (America) LLC, is a German global container carrier company founded in 1970 and located at Ballindamm 25, 20095 Hamburg, Germany. Hapag-Lloyd (America) LLC’s U.S. address is 399 Hoes Lane, Piscataway, NJ 08854.

70. Hapag-Lloyd, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation on major trade routes in 129 countries and provides connections between more than 600 ports.

71. In the United States, Hapag-Lloyd's container transportation services utilize multiple ports and/or intermodal terminals including New York, Norfolk, Charleston, Savannah, Memphis, Houston, Dallas, Detroit, Kansas City, Chicago, Los Angeles, and Long Beach, Oakland and Tacoma.

72. Hapag-Lloyd is an ocean common carrier regulated by the Federal Maritime Commission.

73. Hapag-Lloyd and/or its affiliate(s) or predecessor(s) have been parties to the OCEMA Agreement since 1990.

74. Hapag-Lloyd and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

75. Hapag-Lloyd has engaged and continues to engage in international maritime commerce of the United States.

76. Hapag-Lloyd publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

77. Hapag-Lloyd's tariffs contain port-to-port rates. In a port-to-port move, Hapag-Lloyd is responsible for the movement of a container from a foreign point to a marine container terminal in the U.S.

78. Hapag-Lloyd's tariffs also contain rates to/from inland intermodal terminals. In such inland moves, Hapag-Lloyd is responsible for the movement of a container between a marine container terminal and an inland terminal.

79. Hapag-Lloyd's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. In a store-door move, Hapag-Lloyd is responsible for the movement of a container from a foreign point to a customer's inland location in the U.S.

80. Hapag-Lloyd has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates.

81. Hapag-Lloyd's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Hapag-Lloyd.

82. Hapag-Lloyd also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Hapag-Lloyd tariffs.

83. The inland transportation portion of a port-to-port move is referred to by Hapag-Lloyd as a merchant haulage (MH) move. The inland transportation portion of a store-door move is referred to by Hapag-Lloyd as a carrier haulage (CH) move. And the inland transportation portion of a port-to-port move is referred to by Hapag-Lloyd as a merchant haulage exception (MHE) move where Hapag directly supplies and pays for the chassis for the inland move.

G. HMM

84. Respondent HMM Co. Ltd. ("HMM") is a South Korean global ocean carrier company founded in 1976 and located at 194 Yulgok-ro, Jogno-gu, Seoul, Korea. HMM has conducted business in the United States through Hyundai America Shipping Agency Inc., located at 222 Las Colinas Blvd. W, Suite 7400, Irving, TX 75039.

85. HMM's global reach includes four international headquarters, 27 subsidiaries, 76 branches, five overseas offices, and 10 liaison offices.

86. HMM, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation to multiple U.S. ports and/or intermodal terminals including New York, Norfolk, Savannah, Jacksonville, Memphis, El Paso, Chicago, Oakland, Long Beach, and Los Angeles.

87. HMM is an ocean common carrier regulated by the Federal Maritime Commission.

88. HMM and/or its affiliate(s) or predecessor(s) have been parties to the OCEMA Agreement since 1990.

89. HMM and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

90. HMM has engaged and continues to engage in international maritime commerce of the United States.

91. HMM publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

92. HMM's tariffs contain port-to-port rates, under which HMM's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by HMM.

93. HMM's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, HMM is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, HMM's customer is responsible for arranging for and obtaining

motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by HMM.

94. HMM's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, HMM is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by HMM.

95. HMM has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates.

96. HMM's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by HMM.

97. HMM also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable HMM tariffs.

98. One type of provision in a service contract involving merchant haulage makes HMM responsible for payment of charges for chassis use. HMM classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

H. Maersk

99. Respondent Maersk A/S ("Maersk"), conducting business in the United States through Maersk Agency U.S.A. Inc., is a Danish global ocean carrier company founded in 1904 and located at 50, Esplanaden, DK-1098 Copenhagen, Denmark. Maersk Agency U.S.A. Inc.'s U.S. office is located at 180 Park Avenue, Florham Park, NJ 07932.

100. Maersk has provided container transportation and is the world's largest container and supply vessel operator.

101. In the United States, Maersk's container transportation services utilize multiple ports and/or intermodal terminals including New York, Baltimore, Charleston, Savannah, Jacksonville, Miami, Memphis, Houston, New Orleans, Chicago, and Los Angeles.

102. Maersk is an ocean common carrier regulated by the Federal Maritime Commission.

103. Maersk and/or its affiliate(s) or predecessor(s) have been parties to the OCEMA Agreement since 1990.

104. Maersk and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

105. Maersk has engaged and continues to engage in international maritime commerce of the United States.

106. Maersk publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

107. Maersk's tariffs contain port-to-port rates, under which Maersk's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by Maersk.

108. Maersk's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, Maersk is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal

terminal. Under such rates, Maersk's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by Maersk.

109. Maersk's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, Maersk is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by Maersk.

110. Maersk has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates.

111. Maersk's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Maersk.

112. Maersk also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Maersk tariffs.

113. One type of provision in a service contract involving merchant haulage makes Maersk responsible for payment of charges for chassis use. Maersk classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

I. MSC

114. Respondent MSC Mediterranean Shipping Company S.A. ("MSC"), conducting business in the United States through Mediterranean Shipping Company (USA) Inc., is a global container shipping company founded in 1970 and headquartered at S.A. Chemin Rieu 12-14,

1208 Geneva, Switzerland. Mediterranean Shipping Company (USA) Inc.'s U.S. office is located at 420 5th Avenue, 8th Floor, New York, NY 10018.

115. MSC, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation in over 300 ports globally.

116. In the United States, MSC's container transportation services utilize multiple ports and/or intermodal terminals including New York, Norfolk, Charleston, Savannah, Memphis, New Orleans, Houston, Chicago, Oakland, and Los Angeles.

117. MSC is an ocean common carrier regulated by the Federal Maritime Commission.

118. MSC and/or its affiliate(s) or predecessor(s) have been parties to of the OCEMA Agreement since 2008.

119. MSC and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

120. MSC has engaged and continues to engage in international maritime commerce of the United States.

121. MSC publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

122. MSC has provided and continues to provide ocean container transportation to and from the United States under "port-to-port" tariffs, whereby MSC is responsible for the movement of a container between a foreign point and a marine container terminal in the United States. MSC also refers to "port-to-port" movements as merchant haulage or "MH" movements.

123. MSC has provided and continues to provide container transportation between ports and inland intermodal terminals within the United States under inland transportation tariffs.

124. MSC has provided and continues to provide container transportation to or from the United States under “store-door” or “through” tariffs (also referred to by MSC as “door to door” or simply “door” moves), whereby MSC has the responsibility to move containers between a foreign point and an inland destination in the United States. MSC also refers to “store-door” or “through” movements as carrier haulage or “CH” movements.

125. MSC provides chassis to its CH and MH customers under a business model in which MSC procures a chassis and then includes a chassis usage surcharge in its invoice to the Shipper. The relevant IEP with which MSC has a contractual relationship for such chassis usage then bills MSC for all such usage days.

126. For import movements, the chassis surcharge is called a “Chassis Usage Charge” or “CUC.” For export movements, the chassis surcharge is called an “Export Chassis Usage” or “ECU.”

127. The CUC and ECU charges are published by MSC in a tariff.

128. MSC also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable MSC tariffs.

J. ONE

129. Respondent Ocean Network Express Pte. Ltd. (“ONE”), conducting business in the United States through its general agent, Ocean Network Express (North America) Inc., is a global ocean carrier company founded in 2017, with global headquarters located at 7 Straits View, #16-01 Marina One East Tower, Singapore 018936. Ocean Network Express (North America) Inc.’s U.S. address is 8730 Stony Point Parkway, Suite 400, Richmond, VA 23235.

130. ONE is jointly owned by the Japanese shipping companies Nippon Yusen Kaisha, Mitsui O.S.K. Lines Ltd., and Kawasaki Kisen Kaisha Ltd. (K Line) through Ocean Network Express Holdings Ltd, Japan.

131. ONE, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation to a network that encompasses a fleet of 220 vessels operating in over 100 countries.

132. ONE is an ocean common carrier regulated by the Federal Maritime Commission.

133. In the United States, ONE has served multiple ports and/or intermodal terminals including New York, Norfolk, Savannah, Memphis, Houston, Chicago, and Los Angeles.

134. ONE has been a member of the OCEMA Agreement since 2018.

135. ONE has been a member of the CCMP Agreement since 2018.

136. ONE has engaged and continues to engage in international maritime commerce of the United States.

137. ONE publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

138. ONE's tariffs contain port-to-port rates, under which ONE's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining rail and/or motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ONE.

139. ONE's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, ONE is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal.

Under such rates, ONE's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ONE.

140. ONE's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, ONE is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by ONE.

141. ONE has customers who obtain ocean transportation of containers using its port-to-port, inland intermodal, and store-door tariff rates.

142. ONE's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by ONE. Under one such rule tariff, ONEY-030, No. 21.002, ONE may assess motor carriers or BCOs/NVOCCs Detention Charges of \$45.00 for bare chassis for each calendar day following "free time." As a practical matter, ONE invoices only the motor carrier for container detention and does not issue invoices for chassis detention.

143. ONE also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable ONE tariffs.

144. One type of provision in a service contract involving merchant haulage makes ONE responsible for payment of charges for chassis use. ONE classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

K. Wan Hai

145. Respondent Wan Hai Lines Ltd (“Wan Hai”), conducting business in the United States through Wan Hai Lines (USA) Ltd., is a Taiwanese global ocean carrier company founded in 1965 and located at 10th Floor, No. 136, Sung Chiang Road, Taipei 10417, Taiwan. Wan Hai’s U.S. address is 301 E. Ocean Boulevard, #1650, Long Beach, CA 90802.

146. Wan Hai, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation, operating roughly 20 routes in 43 major international ports.

147. In the United States, Wan Hai has served multiple ports including Long Beach, Oakland and Seattle. Beginning in July 2021, Wan Hai began to service New York/New Jersey, Charleston, and Savannah.

148. Wan Hai is an ocean common carrier regulated by the Federal Maritime Commission.

149. Wan Hai and/or its affiliate(s) or predecessor(s) have been members of the OCEMA Agreement since 2016.

150. Wan Hai has engaged and continues to engage in international maritime commerce of the United States.

151. Wan Hai publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

152. Prior to 2015, Wan Hai provided and paid for chassis, for door to door and port to port service. Since 2015, Wan Hai’s tariffs contain port-to-port rates, under which Wan Hai’s customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port and the customer’s location. With respect to motor carrier

transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by Wan Hai.

153. Wan Hai's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, Wan Hai is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, Wan Hai's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by Wan Hai.

154. Wan Hai's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, Wan Hai is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by Wan Hai.

155. Wan Hai has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates.

156. Wan Hai's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Wan Hai.

157. Wan Hai also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Wan Hai tariffs.

158. One type of provision in a service contract involving merchant haulage makes Wan Hai responsible for payment of charges for chassis use. Wan Hai classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

L. Yang Ming

159. Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) is a Taiwanese global ocean carrier company founded in 1972 and located at 271 Ming De 1st Road, Cidu District, Keelung 20646, Taiwan, Republic of China. Yang Ming has conducted business in the United States through Yang Ming (America) Corporation, whose office is located at One Newark Center, 1085 Raymond Boulevard, 9th Floor, Newark, NJ 07202.

160. Yang Ming, by itself and through its common carrier subsidiaries and affiliated companies, has provided container transportation in Asia, Europe, America, and Australia.

161. In the United States, Yang Ming has served multiple ports and/or intermodal terminals including New York, Charleston, Houston, Chicago, Savannah, Memphis, Long Beach, and Los Angeles.

162. Yang Ming is an ocean common carrier regulated by the Federal Maritime Commission.

163. Yang Ming and/or its affiliate(s) or predecessor(s) were members of the OCEMA Agreement from 2000 to 2018.

164. Yang Ming and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

165. Yang Ming has engaged and continues to engage in international maritime commerce of the United States.

166. Yang Ming publishes tariffs for ocean transportation of cargo containers to and from ports in the United States. These tariffs include transportation of cargo containers carried under “port-to-port” terms.

167. Yang Ming publishes tariffs which cover inland transportation by rail between ports and inland intermodal terminals that, in conjunction with its tariffs governing port-to-port transportation, provide for transportation of cargo containers between foreign points and inland intermodal terminals in the United States.

168. For transportation of cargo containers under port-to-port terms, Yang Ming’s customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port or inland intermodal terminal and the customer’s location. This responsibility includes the responsibility for obtaining chassis. Yang Ming classifies such container movements as merchant haulage (MH) moves.

169. Yang Ming also publishes tariffs which cover transportation of cargo containers on through ocean terms under which Yang Ming is responsible to deliver the cargo containers to or from customers locations in the United States. These terms under which the transportation of cargo containers is carried are sometimes referred to as through or “store-door” terms. Under store-door terms, Yang Ming has the responsibility for arranging for motor carrier transportation between a port or inland intermodal terminal and a customer’s location, including payment to a chassis provider for the chassis used in such a move. Yang Ming classifies such container movements as carrier haulage (CH) moves.

170. Yang Ming has customers that obtain transportation of cargo container pursuant to tariffs containing port-to-port, inland intermodal, and store-door terms.

171. Yang Ming has provided and continues to provide ocean container transportation pursuant to service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Yang Ming tariffs.

172. One type of provision in a service contract involving merchant haulage makes Yang Ming responsible for payment of charges for chassis use. Yang Ming classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

M. ZIM

173. Respondent ZIM Integrated Shipping Services (“ZIM”), conducting business in the United States through ZIM American Integrated Shipping Services Company, LLC is an Israeli global ocean carrier company founded in 1945, and located at 9 Andrei Sakharov St., “Matam” – Scientific Industries Center, P.O.B. 1723, Haifa 21016, Israel. ZIM American Shipping Services Company, LLC’s primary U.S. business address is 5801 Lake Wright Drive, Norfolk, VA 23502.

174. ZIM, by itself and through its common carrier subsidiaries and affiliated companies, provides container transportation to over 100 countries and networks in major strategic ports worldwide.

175. In the United States, ZIM’s container transportation services utilize multiple ports and/or intermodal terminals including New York, Norfolk, Charleston, Savannah, Jacksonville, Miami, Mobile, New Orleans, Memphis, Houston, Chicago, Los Angeles, Long Beach, Seattle, and Tacoma.

176. ZIM is an ocean common carrier regulated by the Federal Maritime Commission.

177. ZIM and/or its affiliate(s) or predecessor(s) have been members of the OCEMA Agreement since 2007.

178. ZIM and/or its affiliate(s) or predecessor(s) have been members of the CCMP Agreement since 2006.

179. ZIM has engaged and continues to engage in international maritime commerce of the United States.

180. ZIM publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States.

181. ZIM's tariffs contain port-to-port rates, under which ZIM's customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining motor carrier transportation between the port and the customer's location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ZIM.

182. ZIM's tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, ZIM is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, ZIM's customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ZIM.

183. ZIM's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, ZIM is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by ZIM.

184. ZIM has customers who obtain ocean transportation of containers using its port-to-port, inland intermodal, and store-door tariff rates.

185. ZIM's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by ZIM.

186. ZIM also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable ZIM tariffs.

187. One type of provision in a service contract involving merchant haulage makes ZIM responsible for payment of charges for chassis use. ZIM classifies chassis use under such service contract provisions as merchant haulage exception (MHE) moves.

N. Relevant Non-Parties

188. Non-party Interpool, Inc. d/b/a TRAC Intermodal ("TRAC Intermodal") is an enterprise that has leased and rented chassis as an IEP.

189. Non-party Direct ChassisLink Inc. ("DCLI") is an enterprise that has leased and rented chassis as an IEP.

190. Non-party Flexi-Van Leasing, Inc. ("Flexi-Van") is an enterprise that has leased and rented chassis as an IEP.

191. Non-party North American Chassis Pool Cooperative, LLC ("NACPC") is an enterprise that has leased and rented chassis as an IEP.

II. CHASSIS POOLS

A. Chassis Pools, Generally

192. The major IEPs denominate their single-provider chassis pools as "neutral" pools because the chassis in those pools may be made available to multiple ocean carriers.

193. “Fully interoperable” or “gray” chassis pools are chassis pools managed by a single entity in which equipment contributed by multiple equipment providers are commingled.

194. A gray chassis pool does not require matching a specific equipment provider’s chassis with a particular ocean carrier’s containers.

B. The “Pool-of-Pools” (“POP”)

195. At the POP, established by DCLI, TRAC Intermodal, and Flexi-Van at the ports of Los Angeles and Long Beach, chassis owned by those IEPs can be used on an interoperable basis.

196. As of August 20, 2020, the POP website had stated the following:

Prior to the POP, the operation of multiple independent chassis pools in Los Angeles and Long Beach created situations where chassis in different pools were segregated at facilities for use only by certain user bases, and returnable only to a fraction of the facilities otherwise available to receive chassis. These inefficiencies often resulted in lost time and revenue to a motor carrier, duplicative repositioning, and confusion on terminals and rail ramps. The “gray fleet” that is the POP has smoothed the impacts to chassis operations that would have otherwise occurred in the ever-changing landscape of ocean carrier alliances and terminal operations, increases overall efficiency and availability, and significantly reduces chassis splits.

Pool of Pools, *About Us*, <https://web.archive.org/web/20200820222149/http://www.pop-lalb.com/> The U.S. Department of Justice issued a business review letter to Flexi-Van Leasing, Inc. and Direct ChassisLink, Inc. with respect to the POP.

197. Usage of chassis in the POP is assigned to the IEP that has a contractual relationship with the ocean carrier whose container is being moved.

III. CCM OPERATIONS

A. CCM Pools, Generally

198. According to OCEMA's website, at one point in time CCM had "over 120,000 chassis under management at regional pools in 29 major metropolitan transportation hubs."

OCEMA, <http://www.ocema.org/ccm.html>.

199. According to the October 28, 2020, OCEMA Senior Steering Committee meeting presentation, CCM chassis inventory had reduced in size. OCE0028397 at 8407.

200. CCM had six pool LLC subsidiaries. These subsidiaries and the port and inland terminal metropolitan areas that they served include: (1) Chicago & Ohio Valley Consolidated Chassis Pool LLC (Chicago, IL; Cleveland, OH; Cincinnati, OH; Columbus, OH; Detroit, OH; Indianapolis, IN; Louisville, KY); (2) Denver Consolidated Chassis Pool LLC (Denver, CO; Salt Lake City, UT); (3) Gulf Consolidated Chassis Pool LLC (Houston, TX; Dallas, TX; New Orleans, LA; El Paso, TX; Fort Worth, TX; San Antonio, TX); (4) Mid-South Consolidated Chassis Pool LLC (Memphis, TN; Nashville, TN); (5) Mid-West Consolidated Chassis Pool LLC (St. Louis, MO; Kansas City, KS; Omaha, NE); and (6) South Atlantic Chassis Pool LLC (Atlanta, GA; Charleston, SC; Charlotte, NC; Jacksonville, FL; Savannah, GA; Tampa, FL).

OCEMA, <http://www.ocema.org/ccm.html>.

B. Closure of the Gulf Consolidated Chassis Pool ("GCCP")

201. GCCP served ports and intermodal terminals, including Houston, El Paso, and New Orleans.

202. On August 19, 2020, GCCP formally closed, and GCCP's contracts with chassis contributors and users terminated as of that date. See CCM0001329.

C. Closure of the Chicago & Ohio Valley Consolidated Chassis Pool ("COCP")

203. COCP served numerous intermodal terminals in the Midwest, including in Illinois, Indiana, and Ohio.

204. On August 19, 2020, the COCP formally closed and COCP's contracts with chassis contributors and users terminated as of that date. *See* CCM0001329.

D. Operations at South Atlantic Chassis Pool ("SACP")

205. The SACP operates under its own agreement, FMC Agreement No. 011980.

206. SACP serves ports and intermodal terminals in the South East, including at Atlanta, Charleston, Savannah, and Jacksonville. For ocean carriers wishing to make use of on-dock chassis at the Ports of Savannah, Jacksonville, and (currently) Charleston, use of the SACP is currently mandated by the Ports of Savannah and Jacksonville.

IV. OCEAN CARRIERS' CONTRACTS WITH IEPS

207. As of August 24, 2020, the three major IEPS, TRAC Intermodal, DCLI, and Flexi-Van, leased chassis to ocean carriers and motor carriers. NACPC and several smaller chassis providers also have leased chassis to ocean carriers and motor carriers.

A. CMA Contracts with IEPS

[REDACTED]

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B. COSCO Contracts with IEPs

[REDACTED]

[REDACTED]

[REDACTED]

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C. Evergreen Contracts with IEPs

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[REDACTED]

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[REDACTED]

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[REDACTED]

[REDACTED]

[REDACTED]

F. Maersk Contracts with IEPs

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

G. MSC Contracts with IEPs

[REDACTED]

[REDACTED]

[REDACTED]

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H. ONE

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I. Wan Hai Contracts with IEPs

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[REDACTED]

J. Yang Ming Contracts with IEPs

[REDACTED]

[REDACTED]

[REDACTED]

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[REDACTED]

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[REDACTED]

[REDACTED]

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[REDACTED]

[REDACTED]

A horizontal bar chart consisting of 14 black bars of varying lengths, arranged vertically. The bars represent a sequence of data points. The lengths vary significantly, with the longest bar being the fourth from the top and the shortest being the first and last bars. The bars are solid black and have no labels or titles.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

K. ZIM Contracts with IEPs

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

DATED: February 23, 2022	Respectfully submitted,
By: <u>/s/ Christopher Raleigh</u> Wayne R. Rohde Christopher Raleigh Mark A. Rabinowitz Kathryn Sobotta COZEN O’CONNOR 1200 19th Street N.W., Suite #300	By: <u>/s/ David D. Golden</u> W. Stephen Cannon David D. Golden Seth D. Greenstein Richard O. Levine Allison F. Sheedy J. Wyatt Fore

Washington, D.C. 20036 (202) 463-2507 <i>Counsel for Respondents</i>¹	Paulette Rodriguez Lopez Janice Johnson Osob M. Samantar CONSTANTINE CANNON LLP 1001 Pennsylvania Avenue, NW Suite 1300 N Washington, DC 20004 Phone: 202-204-3500 scannon@constantinecannon.com Daniel Vitelli CONSTANTINE CANNON LLP 335 Madison Avenue New York, NY 10017 Phone: 212-350-2700 dvitelli@constantinecannon.com <i>Attorneys for Complainant</i> <i>Intermodal Motor Carriers Conference of the</i> <i>American Trucking Associations</i>
By: <u>/s/ Deana Rose</u> Deana E. Rose MANELLI SELTER PLLC 1725 I Street NW. Washington, D.C. 20006 (202) 261-1016 <i>Counsel for Respondent Yang Ming</i> <i>Marine Transport Corporation</i>	By: <u>/s/ Gerald Morrissey</u> Gerald Morrissey Christopher Nolan HOLLAND & KNIGHT 800 17th Street N.W., Suite 1100 Washington, D.C. 20006 (202) 469-5497 <i>Counsel for Respondent Hapag-Lloyd AG</i>

¹ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation.